HON'BLE SRI JUSTICE U. DURGA PRASAD RAO
AND
HON'BLE MS. JUSTICE J. UMA DEVI

F.C.A. No.172 of 2019

JUDGMENT: (*Per Hon'ble Sri Justice U.Durga Prasad Rao*)

The challenge in this appeal is to the order dated 20.12.2019 in F.C.O.P.No.110/2018 passed by the learned Judge, Family Court-cum-V Additional District Judge, Tirupati dismissing the petition filed under Sections 6 & 13 of the Hindu Minority and Guardianship Act, 1956 r/w Section 9 of the Guardian and Wards Act, 1890 and Section 7(g) of the Family Courts Act by the petitioner seeking guardianship and custody of the minor boy N.Jainarayan Sai being his father.

2. Petitioner's case is thus:

The appellant/petitioner and respondent are the divorced couple and the minor boy N.Jainarayan Sai is their son. Originally, the petitioner belongs to Tirupati and respondent belongs to Chittoor. Their marriage was held on 18.11.2010 at Tirupati. The respondent gave birth to a son on 02.10.2014 in Henry Ford West Blood Field Hospital, Michigan, U.S.A. Due to matrimonial disputes, the petitioner applied for divorce on 05.03.2015 in the Circuit Court of Wayne Country, Family Division, Michigan, U.S.A and divorce was granted on 21.01.2016 by the said Court dissolving the marital relationship between the parties. Minor boy is concerned, the Family Division Court passed consent order regarding joint legal and physical custody and parenting time of the minor boy till he attains the age of 18 years or until further orders of the said Court. Regarding

parenting time also the said Court passed order that parenting shall be alternate on a three month basis with a rider that the three month alternating schedule shall continue until 01.07.2018 or until the parties reside in the same city/area whichever occurs first. In the event parents were unable to establish residence in the same city/area by 01.07.2018, then it was agreed by parties that the minor child would continuously reside with plaintiff in Michigan and on the other hand, if the parties establish residence in the same city/area on or before 01.07.2018, then the parties agree to 3-3-4-4 rotating parenting schedule.

(a) Be that it may, the petitioner along with his minor son traveled to Tirupati on 12.06.2017 with the prior consent of the respondent and since then the child had been staying with him. The respondent also visited India and in the month of October, 2017, she exercised three weeks of parenting time with her son in her parents' home in Chittoor and returned to Houston, Texas, U.S.A. and the boy was returned to Tirupati. The boy was admitted in Edify School, Tirupathi. While so, subsequently some turn of events took place whereby the respondent herein approached the Circuit Court of Wayne Country, Family Division, Michigan, U.S.A and filed a petition seeking a direction to the petitioner herein to return her minor son to her custody and obtained *ex parte* order. The respondent also filed W.P.No.30964/2018 before common High Court of Judicature at Hyderabad for the State of Telangana and the State of Andhra Pradesh for relief of *habeas corpus*. In his turn, sensing the threat of dislocation of boy, the petitioner filed F.C.O.P.No.110/2018 before the Family Court-cum-V Additional District Judge, Tirupati for declaration that he is lawful guardian

of his ward and restrain the respondent from interfering. It is also petitioner's case that he appeared before the Circuit Court of Wayne Country, Family Division, Michigan, U.S.A and submitted a detailed explanation that Court cases were pending before the Family Court at Tirupati and High Court of Andhra Pradesh on the same subject matter i.e., for guardianship and custody of minor son and thereupon, the Court at Michigan, U.S.A dismissed the petition, filed by the respondent, on 01.10.2018 declining to hold jurisdiction on the ground that the Indian Courts are in control of the matter and also following relevant provisions of the Uniform Child-Custody Jurisdiction and Enforcement Act (UCCJEA) for Family Courts in U.S.A. While the matter stood thus, according to petitioner, the respondent along with her henchmen kidnapped the minor boy on 15.11.2018 from the petitioner's parental home by beating his old mother and took the boy to Texas, U.S.A. The petitioner lodged police report and charge sheet was filed and case is said to be pending before the V Additional Judicial Magistrate of First Class, Tirupati.

(b) While so, the respondent remained *ex parte* before the Family Court, Tirupati and thereafter enquiry was conducted and oral and documentary evidence was adduced by the petitioner before the said Court. Learned Judge, Family Court, on wrong appreciation of the facts, evidence and law, opined that since the petitioner approached the Circuit Court of Wayne Country, Family Division, Michigan, U.S.A and obtained divorce and the said Court while granting divorce, passed detailed order with regard to the custody of the child, parenting time and video conferencing etc., and in the said judgment the said Court clearly held that the Foreign Court shall

retain its jurisdiction until all of the provisions of that judgment of divorce have been fulfilled and since the petitioner invited judgment of the divorce from the Foreign Court and the child custody, parenting time and video conferencing etc., were decided by the said Court, therefore finding of the said judgment is binding on both parties. With these observations, the Family Court, Tirupati dismissed the petition. In other words, the Family Court at Tirupati declined jurisdiction.

Hence, the appeal at the instance of the petitioner.

3. Heard arguments of Sri N. Pavan Kumar, the petitioner who appeared in person and Sri Prabhjit Jauhar, learned senior counsel representing Sri J.M.Naidu, counsel for respondent.

4. Shorn of unnecessary details, the argument of Sri N. Pavan Kumar pivots on two main points.

(a) Firstly, while severely fulminating the order of the Family Court at Tirupati, he would argue that the trial Court declined to assume jurisdiction on wrong appreciation of facts and law that both parties obtained divorce and also the orders relating to care, custody and parenting time etc., from the Court at Michigan and therefore, the said Court alone will have jurisdiction since it has not abdicated its jurisdiction. The trial Court further erred in holding that the boy was with the mother in U.S.A and therefore, it cannot assume jurisdiction. He argued that in W.P.No.47995/2018 which was filed by the petitioner seeking relief of *habeas corpus* against the respondent, a Division Bench of this High Court has clearly held that since the boy was forcibly taken away by the mother without any lawful authority or with the

aid of any order passed by the Indian Court, it would be just and proper to direct the mother to subject herself to the jurisdiction of Civil Court in F.C.O.P/G.W.O.P.No.110/2018 i.e., Family Court-cum-V Additional District Judge, Tirupati and produce the child before the said Court. The Division Bench further held, he would argue, in such an event the said Court shall examine the boy, father, mother and all concerned and then pass appropriate orders. He argued that the Division Bench pellucidly stated that in its view, deciding of the issue by an appropriate civil Court is very much essential. He thus argued that in terms of the said order, the Family Court at Tirupati very much holds jurisdiction to decide the issue. However, without following the said order in letter and spirit, the trial Court abdicated its duty.

(b) Nextly, he argued that the respondent approached the Michigan Court and sought for custody of the minor boy. At first, the said Court passed an *ex parte* order directing the petitioner herein to produce the boy before the said Court. However, on the detailed explanation submitted by the petitioner stating that petitions filed by him before Family Court at Tirupati and writ petition before the High Court of Andhra Pradesh were pending, the said Court declined jurisdiction by following provisions in Section 202(1)(b) of the Uniform Child-Custody Jurisdiction and Enforcement Act (UCCJEA). In view of the above judgments, the lower Court ought to have decided the matter on merits instead of declining the jurisdiction.

(c) He further argued that since 15.06.2017 the boy has been residing at Tirupati and he was also admitted in a convent and studying there. Thus, by 30.08.2018 i.e., the date of filing of F.C.O.P.No.110/2018, the boy's

residence in India was for more than one year and since he has been residing with his father and grandparents at Tirupati, said place has become the ordinary place of residence of the minor boy and therefore, the Family Court at Tirupati holds jurisdiction to try the guardian petition. He thus prayed to allow the appeal.

5. Per contra, Sri Prabhjit Jauhar, learned senior counsel representing Sri J.M.Naidu, counsel for respondent, while supporting the order of the trial Court argued that the couple led marital life in U.S.A. and they also begot son there, who is a citizen of that country, and above all both the parties invoked the jurisdiction of Michigan Court and obtained divorce. Besides, the said Court has, in its order imposed terms regarding the custody and parenting time for the parties to scrupulously follow and for all these reasons the Michigan Court or the Courts in U.S.A. alone can exercise jurisdiction in the matter of awarding guardianship over the minor boy. The boy's ordinary place of domicile was U.S.A. and the petitioner took him away to Tirupati-India without prior permission of the Michigan Court on the lame excuse that the mother has consented for. Learned senior counsel vehemently argued that mother's consent is of no significance in view of the terms imposed by the Michigan Court, one of which was that the domicile or residence of the minor child shall not be moved from the State of Michigan without first obtaining the prior approval of the Court or its successor. Therefore, the act of petitioner in bringing the minor boy to Tirupati, India itself is illegal and for that reason Tirupati or any place in India cannot be said to be the domicile or ordinary place of residence of the minor boy for

assumption of jurisdiction by the Indian Courts. Having noted these facts perspicuously, learned Judge of Family Court at Tirupati has rightly declined jurisdiction.

He placed reliance on **Yashita Sahu v. State of Rajasthan**[1]**, Nithya Anand Raghavan v. State of NCT of Delhi**[2]

6. The point for consideration is whether the trial Court was right in declining jurisdiction?

7. **Point**: As already stated supra. the Judge, Family Court at Tirupati refused to exercise jurisdiction over petitioner's case predominantly on the ground that both petitioner and respondent are residents of U.S.A; they lead their marital life and begot a son and obtained divorce in that country; further, most importantly the Family Division Court at Michigan, U.S.A. imposed certain terms and conditions relating to care and custody and parenting time of the minor boy to be adhered by the petitioner and respondent and one of which was that the domicile or residence of the minor child shall not be removed from the State of Michigan without first obtaining prior approval of the said Court or its successor; however, the petitioner has brought the minor boy to Tirupati without previous permission of divorce Court on the plea that he obtained consent of the respondent; even if such consent was given by the respondent, it was nothing but violation of the orders of the Foreign Court and thus, both parties violated orders of the Michigan Court. The trial Court also considered certain documents i.e.,

[1] MANU/SC/0052/2020 = (2020) 3 SCC 67
[2] MANU/SC/0762/2017 = (2017) 8 SCC 454

Ex.A37-Michigan Court's order dated 01.10.2018 declining jurisdiction for, it was an inconvenient forum in respect of the application filed by the respondent for custody of the son, Ex.A38-certified copy of the motion for reconsideration of the order dated 01.10.2018 moved by the defendant and Ex.A39-certified copy of the defendant's motion dated 22.10.2018 and held that in those documents there was no mention about the modification or cancelation of the conditions imposed in Ex.A12 by the Michigan Court. The trial Court also observed that the child is at present staying with the mother in U.S.A. since 16.11.2018. The trial Court further observed that the Family Division Court at U.S.A. put a condition that it shall retain its jurisdiction until all of its provisions of the judgment of divorce have been fulfilled. Considering all the aforesaid aspects the trial Court opined that by virtue of Ex.A12 the Court of Michigan retained its jurisdiction with regard to custody of child and parenting time, and dismissed the petition.

8. We gave our anxious consideration to the order of the lower Court and respective arguments of the parties. We make it clear that we are not resolving the controversy as to whether father or mother is best suited to grant custody of the minor boy since that issue has to be tackled by the Family Court at Tirupati in case we ultimately hold the said Court should exercise jurisdiction. We also make it clear that we do not decide the issue, whether the act of respondent in taking back her minor son to Texas, U.S.A. amounts to an offence inviting criminal action, as already criminal case is pending in that regard. Suffice for the purpose of this appeal to advert that respondent has taken away her son from Tirupati to U.S.A. on 15.11.2018.

Therefore, our main task in this appeal is to decide whether the trial Court was factually and legally correct in abstaining itself from exercising jurisdiction.

9. The couple leading marital life, begetting the son and obtaining divorce from the Family Division Court at Michigan and the said Court incorporating certain terms and conditions relating to care, custody and parenting time of minor child agreed upon by the both parties are admitted facts and need not be reiterated once again.

10. Be that it may, while exercising the alternate parenting time as fixed by the Michigan Court and making efforts to locate a common city/area for residence before 01.07.2018, the petitioner who is the father of the minor boy visited to Tirupati, India along with minor boy on 12.06.2017 of course with the prior written consent of the respondent-mother. The consent given by the respondent through notarized letters dated 06.10.2017 and 12.10.2017 (marked as Ex.A13 and A40 in F.C.O.P No.110/2018) would show that initially the respondent gave consent to the petitioner to travel to India along with the boy between 11.06.2017 and 15.08.2017 and later she authorized them to stay in India up to and after 01.07.2018 or until she returns to India. Subsequently, swift turn of events took place. The respondent also visited her parental home Chittoor and had some parenting time with her son. During the said period, some bickerings took place between the parties on the issue of petitioner's insistence for permanent stay in India and her refusal. It appears sensing that the respondent may disrupt his guardianship, the petitioner filed F.C.O.P.No.110/2018 to declare that he is the lawful

guardian of the ward and for granting permanent and sole custody of the son to him. In her turn, the respondent filed a W.P.No.30964/2018 for habeas corpus before the Common High Court of Andhra Pradesh and Telangana at Hyderabad for custody of the child. She went to U.S.A and moved the Family Division Court at Michigan seeking custody of boy from father. On notice, the petitioner herein appeared and filed his counter. Having considered that the petitioner along with boy has been residing in India since some time with an intention to remain in India indefinitely and proceedings are pending before the Indian Courts, the said Court observing that it was no longer holding continuous jurisdiction over the custody of the minor child and the said Court is an inconvenient forum to litigate, dismissed the petition filed by the respondent.

11. The facts would show that subsequently the W.P.No.30964/2018 came up for hearing wherein, the respondent obtained custody of her boy by depositing her passport and some days after, she returned the boy to the petitioner and took back her passport. On 15.11.2018 when the said W.P. was coming up for hearing, the petitioner said to have attended the High Court of A.P. His version is that on that day the respondent did not appear but she sought permission through her counsel to withdraw the writ petition. The order dated 15.11.2018 in W.P.No.30964/2018 would show that the Court granted permission and accordingly, the W.P. was dismissed as withdrawn. Then it is the case of the petitioner that on the same day while he was at Hyderabad, the respondent along with her henchmen went to his house at Tirupati and forcibly kidnapped his son to U.S.A by causing

injuries to his old aged mother who resisted her acts. A police complaint was given thereafter and charge-sheet was filed and criminal case is pending.

12. Thereafter, petitioner filed W.P.No.47795/2018 for habeas corpus, seeking a direction to the respondent to produce the minor boy and to hand over his custody to him. The respondent filed her counter. While denying the allegation of kidnap, it is contended that she took the child as there was no order operating against her and that she has not violated any law either Indian or Foreign in taking minor child to U.S.A.

Upon hearing both parties, the Division Bench of this High Court passed the following order:

> "23. Xxxx. From the narration of events, it clearly indicates that while order of the High Court was in force, the child was forcibly taken away to USA by the mother. Though it is pleaded that no order is in force for the reason that the writ petition was withdrawn on 15.11.2018, but this withdrawal is subject matter of dispute, for the reason that the same is being done only with an intention to get away with the order passed by the High Court in ordering custody of the boy to the father.
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> 24. However, the record clearly shows that on the day when the writ petition was withdrawn, the boy was abducted from the lawful guardianship of his grand mother. It is no doubt true that orders are passed by the Courts in U.S., but, at the same time, the Courts in India, while recognizing the custody of the boy with the father, granted interim custody to the father, meaning thereby, the boy is in lawful custody of the father in India. Forcible taking away of the boy from the custody of his grand mother, is not permitted by any law or by any order passed by the Courts in U.S. In fact, there is no answer from the counsel when the Court posed a query as to how the mother came into custody of the boy on 15.11.2018. Since November, 2018, the boy is in the custody of the mother and father has been visiting USA fighting out the litigation in the said courts. At the same time, the appropriate civil Court in India is also seized of the matter with regard to the custody of the child vide FCOP/GWOP No.110 of 2018 before the Family Court at Tirupati.
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> 25. Since the boy has been forcibly taken away without any lawful authority or with the aid of any order passed by the Indian Court and since the welfare of the child is a paramount consideration, it will be just and proper for us to direct the mother to subject herself to the jurisdiction of the civil court in FCOP/GWOP No.110 of 2018 before the Family Court-cum-V Additional District Judge, Tirupati, and produce the child before the said Court. In

> which even, the said Court shall examine the boy, father, mother and all concerned and then pass appropriate orders. In our view, deciding of the issue by the appropriate civil court is very much essential, more so, in view of the judgment of the division bench of this Court in ***Alekhya Yalamanchili's case***, where the court held that even if the child is not within the territorial jurisdiction of the court, if parties have approached the civil court, which is within the supervisory or superintendence jurisdictional area of High Court, it is entitled to assume jurisdiction.
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> 26. In the result, the writ petition is allowed, directing the 12th respondent to produce N. Jainarayan Sai, a minor child aged about 5 years, sone of the petitioner and the 12th respondent, before the Family Court at Tirupati within 8 to 12 weeks from the date of receipt of a copy of this order. On which, the concerned civil court shall decide the issue relating to interim custody of the child pending O.P. as well the O.P. in accordance with law at the earliest"

The above order would depict that the Division Bench of this High Court made the following crucial observations:

(i) the respondent had taken away the boy to U.S.A. on 15.11.2018 from the lawful guardianship of his grandmother / father. It is true that orders were passed by the Courts in U.S.A., but at the same time the Courts in India, while recognizing the custody of the boy with the father, granted interim custody to the father meaning thereby, the boy was in lawful custody of father in India.

(ii) The counsel for respondent could not answer to the Court's query as to how the mother came into custody of the boy on 15.11.2018.

(iii) The appropriate civil court in India seized of the matter with regard to the custody of the child vide FCOP/GWOP No.110/2018 before Family Court at Tirupati.

(iv) Since the boy has been forcibly taken away without the lawful authority or the aid of any order passed by the Indian Court and since the welfare of the child is a paramount consideration, it will be just and proper for this Court (Division Bench) to direct the mother to subject herself to the jurisdiction of Civil Court in

> FCOP/GWOP No.110/2018 before the Family Court, Tirupati and produce the child before the said Court, in which event the said Court shall examine the boy, father, mother and all concerned and then pass appropriate orders. Deciding of the issue of the appropriate civil court is very much essential.

13. The above observations would indicate, the Division Bench of this Court having taken stock of relevant facts and welfare of the minor boy into consideration, directed both the parties to subject themselves to the jurisdiction of the Family Court-cum-V Additional District Judge, Tirupati by producing the child for examination of the Court. The Division Bench also directed the Family Court, Tirupati to examine the boy and his parents and all other concerned and then to pass appropriate orders. The Division Bench in this regard referred the Division Bench judgment of High Court of A.P. in **Alekhya Yalamanchili v. The State of Andhra Pradesh**[3] wherein it was observed thus:

> "23. The law is thus well settled that the dispute before the civil court under Guardians Act is concerned with the final child custody rights of the parents whereas habeas corpus proceeding deals with protection of the person who is held in unlawful custody. A child is not a property or a commodity. When the parents complain unlawful removal from its jurisdiction the court is bound to issue habeas corpus exercising parens patriae jurisdiction. Both the proceedings are summary but the proceedings under Guardians Act are substantive whereas habeas corpus proceedings are procedural. Even if the child is not within the territorial jurisdiction of the court, if the parties had already approached a competent civil court which is within the supervisory or superintendence jurisdictional area of the High Court, it is entitled to assume jurisdiction (Emphasis supplied). The factum of relocation of a child is no ground to oust habeas corpus jurisdiction of the High Court. We, therefore, hold on the issue against the third respondent and in favour of the petitioner."

14. In the light of above pellucid directions, there can be no doubt that the Family Court-cum-V additional District Judge, Tirupati shall assume

[3] MANU/AP/0307/2012 = 2012(3) ALT 803

jurisdiction to decide the case before it on merits as to who among the parents is best suited to hold the custody of the minor boy and other incidental issues. However, in our considered view, the trial Court committed a grave error in repudiating the jurisdiction without considering the copy of the order in W.P.No.47795/2018 filed before it and got marked as Ex.A29. The trial Court dismissed the petition on untenable grounds that the parties lead marital life and obtained divorce in U.S.A. and the Court at Michigan while granting divorce imposed the conditions and the said Court has not abdicated its jurisdiction. This assigned reason for declining jurisdiction by the trial Court is unjust in the light of the fact that when the respondent herein moved the Court at Michigan for custody of the boy, the said Court considering the facts that the father/petitioner along with son has been residing in Tirupati, India since 11.06.2017 with the consent of mother and he expressed his desire to remain in India with the child indefinitely and already the proceedings between the parties were pending before Indian Courts, perspicuously held that the said Court no longer holds continuing jurisdiction over the custody of minor it was an inconvenient forum to litigate in the light of the MCL 1722. 1202 (1)(a) and (b) and (2) and ultimately dismissed the petition filed by the respondent/mother. The said order copy was also marked as Ex.A37 in FCOP.No.110/2018. Therefore, the trial Court cannot abdicate its jurisdiction. Running the risk of pleonasm, the boy's ordinary place of residence since more than one year prior to the filing of F.C.O.P No.110/2018 was at Tirupati where he was studying and at the same time, the Michigan Court which granted divorce between the parties and imposed conditions relating to the custody and

parenting time, has clearly held that it no more held exclusive jurisdiction and it was an inconvenient forum since the boy has been residing with his father in India with the consent of the respondent. Considering these crucial facts and also the fact that the respondent has taken away the boy from the lawful custody of the father at India, the Division bench has directed the Family Court at Tirupati to decide the F.C.O.P.No.110/2018 on merits. Thus, the trial Court is obligated to follow the said order. It should be noted here the allegation that initially the father has brought the minor boy to Tirupati, India without seeking permission of Michigan Court was not seriously viewed by the said Court for the reason that the respondent-mother has consented for shifting of the boy to Tirupati. So the Family Court at Tirupati cannot decline jurisdiction on the ground that the boy was brought to Tirupati, India without the permission of Michigan Court. Thus, in any view of the matter, the trial Court was not correct in declining the jurisdiction.

15. It is contended by the respondent that the order in W.P.No.47795/2018 was challenged in Special Leave to Appeal (Crl) No.6436/2019 before the Hon'ble Apex Court and therefore the direction in W.P.No.47795/2018 need not be followed. We cannot appreciate this argument. A perusal of the order dated 24.01.2020 passed by the Hon'ble Apex Court in Special Leave to Appeal (Crl) No.6436/2019 would show that on 29.07.2019 stay was granted against the order in W.P.No.47795/2018. Thereafter, on being informed that the F.C.O.P.No.110/2018 was dismissed by the Family Court, Tirupati and an appeal was pending before the High

Court of Andhra Pradesh against the said order, Hon'ble Apex Court observed that the aforesaid subsequent act has over taken the aspect of the challenge before the Supreme Court and thus there was no question of production of child before the Family Court at Tirupati. With that observation Special Leave Petition was disposed of. It should be noted that Hon'ble Apex Court has not set aside the order in W.P.No.47795/2018 on merits. It was only held that the question of production of the child before the Family Court at Tirupati does not arise because of dismissal of F.C.O.P.No.110/2018 by the Family Court at Tirupati. Therefore, the respondent cannot contend that the order in W.P.No.47795/2018 can be ignored. The other contentions raised by the respondent are of not much significance. The decisions cited also will be of no avail.

16. In the result, this Appeal is allowed and order dated 20.12.2019 in F.C.O.P.No.110/2018 passed by Judge, Family Court-cum-V Additional District Judge, Tirupati is set aside with a direction to the said Court to dispose of the F.C.O.P.No.110/2018 on merits in accordance with governing law expeditiously.

U. DURGA PRASAD RAO, J

J. UMADEVI, J

23rd September, 2021
MVA/KRK